DEPARTMENT OF HEALTH & HUMAN SERVICES

Office of the Secretary

Assistant Secretary for Administration
Office of Equal Employment Opportunity,
Diversity & Inclusion
Washington, DC 20201

U.S. DEPARTMENT OF HEALTH & HUMAN SERVICES
EQUAL EMPLOYMENT OPPORTUNITY COMPLAINT
FINAL AGENCY DECISION
COMPLAINT NO.: HHS-IHS-0296-2023

Complainant: Kevin Turnage

Respondent: Xavier Becerra, Secretary
U.S. Department of Health and Human Services

Agency Complaint No.: HHS-IHS-0296-2023

This is the final Departmental decision in the discrimination complaint filed by Kevin Turnage (hereinafter *Complainant*) against the Indian Health Service (*IHS* or *Agency*), U.S. Department of Health & Human Services (hereinafter *HHS* or *Department*).[1]

DECISION

The Department finds that the Agency did not discriminate against Complainant as claimed. Accordingly, the Department orders no relief, attorney's fees, or corrective action.

ACCEPTED CLAIMS[2]

Whether the Agency subjected Complainant to discrimination and/or harassment (sexual/non-sexual) on the bases of race (Caucasian), color (White), sex (male), age (Year of Birth (Y.O.B.) 1973), religion (Christian), and reprisal (prior EEO activity) when:

1. Beginning in January 2023, management failed to timely process his Family Medical Leave Act (FMLA) paperwork;

2. On or about March 2, 2023, management gave Complainant a low Performance Management Appraisal Plan (PMAP) score;

3. On or about March 21, 2013, management placed Complainant on administrative leave, escorted Complainant out of the facility utilizing security, and removed Complainant's

[1] ROI = Report of Investigation, Ex(s) = Exhibit(s), p(p). = page(s), FAD = Final Agency Decision, EEOC = Equal Employment Opportunity Commission, OFO = Office of Federal Operations.
[2] We revised and re-numbered the accepted claim in this FAD for the purposes of clarifying the claim. We did not substantially alter or remove any claim because of the revisions.

system access;

4. On or about April 2023, management placed Complainant on a temporary 120-day detail in another unit;

5. Beginning on or about April 2023, management denied Complainant access to the Men's restroom;

6. Beginning on or about April 2023, management did not provide Complainant office keys; and

7. Beginning on or about April 2023, management reassigned Complainant to an undesirable location.

PROCEDURAL HISTORY

Alleged Discriminatory Action Occurred:	January 2023 – April 2023[3]
Initial Counseling Contact Occurred:	March 20, 2023[4]
Notice of Right to File Issued:	April 12, 2023[5]
Notice of Right to File Received:	April 13, 2023[6]
Formal Complaint Filed:	April 13, 2023[7]
Agency Acknowledged Receipt:	June 8, 2023[8]
Complaint Accepted:	June 8, 2023[9]
Investigation Conducted:	June 27, 2023, to August 21, 2023[10]
ROI Issued:	August 31, 2023[11]

This decision is issued pursuant to Title 29, Code of Federal Regulations (C.F.R.), §1614.110(b).

FACTUAL BACKGROUND

Complainant (Caucasian, White, male, Y.O.B. 1973, Christian, prior EEO activity) is a Supervisory Clinic Nurse at the Phoenix Indian Medical Center (PIMC), IHS, HHS. The Acting Chief Nursing Officer of Outpatient Services served as Complainant's immediate supervisor until February 2023 (Responsible Management Official 1A (RMO-1A)) (unspecified race, lighter complexion, male, Y.O.B. 1986, non-denominational). The Assistant Chief Nurse Officer Ambulatory Care served as Complainant's immediate supervisor beginning on January 30 2023 (Responsible Management Official 1B (RMO-1B)) (Native American, White, female, Y.O.B. 1972, Christian). The Chief Nurse Officer, PMIC, served as Complainant's second-level

[3] ROI, Investigative Summary, p. 3.
[4] ROI, Ex. B-1, p. 32.
[5] ROI, Ex. B-2, p. 50.
[6] ROI, Ex. B-2, p. 51.
[7] ROI, Ex. A-1, p. 26.
[8] ROI, Ex. C-1, p. 53.
[9] *Id*.
[10] ROI, Investigative Summary, p. 3.
[11] *Id*.

supervisor (Responsible Management Official 2 (RMO-2)) (Native American/African American, Brown, female, Y.O.B. 1984, Christian). The Acting Chief Executive Officer (CEO), PMIC, served as Complainant's third-level supervisor (Responsible Management Official 3 (RMO-3)) (Native American, White, female, Y.O.B. 1983, unspecified religion).[12]

Claim 1: FMLA Paperwork Processing

On December 15, 2022, Complainant reported to RMO-1A and RMO-2 that one of his direct reports (DR-1) threatened him and lied about him, which created a hostile work environment. In this email, Complainant further stated that DR-1 created a hostile work environment for multiple employees. Complainant filed this complaint against DR-1 after DR-1 filed several EEO complaints against Complainant.[13] Complainant states that a total of four subordinate nurses have filed hostile work environment claims against him.[14]

On December 20, 2022, RMO-1A sent Complainant various information sheets and forms related to Complainant's reasonable accommodation and Family and Medical Leave Act (FMLA) rights. In this email, RMO-1A informed Complainant that Complainant had the right to request FMLA leave and a reasonable accommodation, if needed.[15]

On January 13, 2023, Complainant sent some FMLA documents to RMO-1A, requesting FMLA leave from January 4, 2023, to January 23, 2023, and intermittent FMLA leave from January 24, 2023, to January 3, 2024. In this email, Complainant informed RMO-1A that he would work on "completing the rest of the packet." On January 24, 2023, RMO-1A informed Complainant that RMO-1B would be assuming supervisory duties that week. In this email, RMO-1A asked Complainant for a status update on his remaining FMLA paperwork. RMO-1A also informed Complainant that DR-1 would remain under different supervision until resolving her pending EEO complaints.[16]

Between February 1-2, 2023, Complainant and RMO-1B exchanged a series of emails, discussing a request from the Agency's Contracting Officer's Representative (COR) that Complainant provide information regarding contractors. In this email exchange, Complainant contended that the COR had responsibility for retention of this information. RMO-1B then directed Complainant to provide some of the requested information. In response to this, Complainant accused RMO-1B of directing him to violate Federal law.[17]

On February 7, 2023, Complainant provided RMO-1B with additional FMLA documents. Complainant states in testimony that he provided all necessary FMLA paperwork on this date. RMO-1B immediately forwarded the forms to the unit's Administrative Support Assistant (ASA)

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[12] ROI, Ex. F-1, pp. 63-65, 76, 149, 167-168; Ex. F-3, pp. 200-201; Ex. F-4, pp. 221-222; Ex. F-5, pp. 232-233; Ex. F-6, pp. 259-260.
[13] ROI, Ex. F-6, pp. 259, 267-268.
[14] We note that Complainant's participation in the EEO process as a Responsible Management Official constitutes protected EEO activity from which the law affords Complainant anti-retaliation protection. EEOC Enforcement Guidance on Retaliation and Related Issues, EEOC Notice 915.004 (Aug. 25, 2016).
[15] ROI, Ex. F-6, p. 261.
[16] ROI, Ex. F-1, pp. 128-142; Ex. F-6, p. 262.
[17] ROI, Ex. F-5, pp. 250-253.

for processing. However, the ASA replied to both RMO-1B and Complainant that one of the required forms, the Office of Personnel Management (OPM) Form 71 (OPM-71), was blank. On February 14, 2023, RMO-1B advised Complainant the need for more corrections to his FMLA paperwork. On March 1, 2023, Complainant emailed RMO-1B, stating that the Agency had failed to timely approve or deny his FMLA leave request. In response, RMO-1B stated that she had asked Complainant to make various corrections to the FMLA, which he had not yet done. Complainant then emailed RMO-1B, contending interference with his FMLA rights. In testimony, RMO-1B states that, upon receipt of this email, she proceeded with processing Complainant's FMLA request "as is." On March 7, 2023, RMO-1B, RMO-2, and RMO-3 signed approval of Complainant's FMLA leave request.[18]

Complainant states this incident is related to his race and color because "if you are not Native American [then] you get subjected to a hostile work environment." Complainant states this incident is related to his sex because "most of the staff is female." Complainant states this incident is related to his age because "most of the staff is in their 20's or early 30's." Complainant states this incident is not related to his religion. Complainant states this incident is reprisal based on his report of sexual harassment against RMO-2.[19]

Claim 2: PMAP Score

On February 23, 2023, RMO-1A sent Complainant his annual PMAP for the performance period of March 28, 2022, to December 31, 2022.[20] The Agency rated Complainant's PMAP utilizing six critical elements, each of which should have received a score from "Level 1: Achieved Unsatisfactory Results" up to a "Level 5: Achieved Outstanding Results." Complainant received an overall rating of 3.3 out of a total possible score of 5.0, which placed Complainant at an overall score of "Level 3: Achieved Expected Results," or at a "meets expectations" rating.[21] Complainant states he should have received an overall total score of 4.0, "Level 4: Achieved More than Expected Results," or higher.[22]

On March 3, 2023, Complainant filed a Step 1 grievance with RMO-1A, contending that his PMAP lacked a rating for Element 1: Administrative and that he should have received higher ratings in several categories. On March 6, 2023, Complainant submitted a grievance addendum, in which he contested RMO-2's appointment as the Stage 1 Official. In this addendum, Complainant alleged that RMO-2 sexually harassed Complainant and "created a Quid-Pro-Quo situation" in November 2022. Specifically, Complainant alleged that, in November 2022, RMO-2 hugged Complainant and now refused to correct his PMAP rating. As an attachment to this addendum, Complainant provided a screenshot of a 2022 holiday card from RMO-2, in which

[18] ROI, Ex. F-1, pp. 130-142, 186; Ex. F-5, pp. 234, 242-246; Ex. G-2, p. 332.
[19] ROI, Ex. F-1, pp. 65-66. We note that Complainant reported RMO- 2 had sexually harassed him on March 6, 2023. ROI, Ex. F-1, pp. 150-151.
[20] Complainant began in his position on March 14, 2022. ROI, Ex. F-1, p. 161.
[21] Complainant testifies that he received an initial PMAP rating of 3.3; however, management testifies that he received an initial PMAP rating of 3.4. ROI, Ex. F-1, p. 67; Ex. F-4, p. 224; Ex. F-5, p. 235; F-6, p. 264. We find this discrepancy to be non-substantive to the adjudication of the claim.
[22] ROI, Ex. F-1, pp. 66-67, 143-165; Ex. F-4, p. 224; Ex. F-5, p. 247.

RMO-2 wrote, in pertinent part, "P.S. I still don't regret that hug!" On March 9, 2023, RMO-3 informed Complainant that she had contacted the EEO office to investigate his allegations.[23]

On March 21, 2023, RMO-1A responded to Complainant's Step 1 grievance. In this response, RMO-1A informed Complainant that he concurred with Complainant's grievance and that he would re-score the PMAP to include scoring of Element 1: Administrative. Subsequently, Complainant filed a Step 2 grievance with RMO-3, contending that the Agency failed to follow proper Step 1 grievance review procedures. On April 5, 2023, RMO-3 responded to Complainant's Step 2 grievance, stating that she agreed with RMO-1A's conclusion to grade Element 1 and rescore Complainant's 2022 PMAP. RMO-3 also stated that she – as opposed to RMO-2 – would be the reviewing official for Complainant's rescored 2022 PMAP. Following the PMAP rescoring, Complainant received an overall score of 3.5. According to the PMAP guidelines, this score converted to an overall rating of "Level 3: Achieved Expected Results."[24]

Complainant states this incident is unrelated to his race, color, sex, and age. Complainant states this incident is reprisal based on his report of sexual harassment against RMO-2 on March 6, 2023.[25]

RMO-2 states that, in November 2022, she and Complainant engaged in a conversation during which Complainant stated his day was going poorly. RMO-2 contends that, in response, she asked him if she could give him a hug, to which Complainant stated that was "OK." RMO-2 states that she then gave Complainant a "non-sexual hug and that was it." RMO-2 states that she and Complainant spoke "about the hug openly" and "joked about it to staff." RMO-2 states that Complainant did not take issue with the hug or allege sexual harassment until March 2023.[26]

RMO-3 states that she asked RMO-2 about the hug and that RMO-2 stated she had asked Complainant in November if she could give him a hug, to which Complainant agreed. RMO-3 states that, shortly after this incident, both Complainant and RMO-2 were diagnosed with COVID-19, which generated "a running joke that the hug caused them to contract COVID-19." RMO-3 states that, in December 2022, RMO-2 gave Complainant a Christmas card with a joke that she did not regret the hug, despite contracting COVID-19 thereafter. RMO-3 states that management inquired into Complainant's allegation of sexual harassment by RMO-2 which, at the time of RMO-3's testimony, was pending final review and decision.[27]

Claim 3: Administrative Leave and Escorted from Facility

On March 21, 2023, at 7:32am, Complainant emailed RMO-1A, RMO-1B, RMO-2, and RMO-3, stating that he had alleged harassment against DR-1 in December 2022, which management had not stopped.[28]

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[23] ROI, Ex. F-1, pp. 66, 143-165; Ex. F-5, p. 247.
[24] ROI, Ex. F-1, pp. 67, 143-149.
[25] We note that the EEO Investigator did not ask Complainant how this event was related to his religion. However, Complainant responded generally that this incident is "not related to any of those factors" and is related only to the fact that he reported RMO-2 for sexual harassment. ROI, Ex. F-1, p. 68.
[26] ROI, Ex. F-4, pp. 224-226.
[27] ROI, Ex. F-3, pp. 204, 207-208.
[28] ROI, Ex. F-5, p. 249.

RMO-1B states that, on March 21, 2023, Complainant texted her that the clinic was short-staffed and needed to close as a result.[29] RMO-1B states that Complainant appeared agitated in the texts. RMO-1B states that she immediately walked to Complainant's office to address the matter. RMO-1B states that, upon arrival to Complainant's office, she ascertained that Complainant was angry with DR-1, one of his nurses, and witnessed Complainant state, "get [DR-1] out of my clinic before I beat the fucking shit out of her." RMO-1B states that she felt threatened by this comment and reported the incident to her leadership. RMO-1B wrote a statement, dated March 21, 2023, in which she described the aforementioned incident. In this statement, RMO-1B named an employee (Witness-1) who was present when Complainant made the statement.[30]

RMO-3 states that, on March 21, 2023, RMO-1B reported to her that DR-1 had refused to accept a work assignment from Complainant and that, in response, Complainant told RMO-1B to get DR-1 out of his clinic or he would "beat her ass." RMO-3 states that Complainant and DR-1 have a history of conflict and that RMO-3 has "personally witnessed [Complainant] lose his temper in stressful situations." RMO-3 states that, based on what was reported to her, she placed Complainant on paid administrative leave pending further investigation into the incident. RMO-3 issued Complainant a Notice of Placement on Administrative Leave, dated March 21, 2023, which placed Complainant on 10 days of paid administrative leave.[31] RMO-3 states that Witness-1 initially corroborated RMO-1B's recitation of the incident at issue but later stated she could not remember what happened. RMO-3 states that, because Witness-1 could not recall the statement, the Agency did not take formal disciplinary action against Complainant.[32]

RMO-1A states that the Agency appointed him to conduct an administrative investigation into possible threatening language Complainant said to DR-1. RMO-1A states that he interviewed Witness-1 as part of this investigation and, subsequently, asked her clarifying questions. RMO-1A states he drafted her written statement based on her account of the facts.[33]

Witness-1 states that, on March 21, 2023, she witnessed RMO-1B, Complainant, and DR-1 discussing "nursing issues." Witness-1 states that she did not hear Complainant make the specific comment at issue to DR-1. Witness-1 states that, following the incident, RMO-1A asked her questions and then asked her to sign a statement; however, the statement did not accurately reflect what she had told RMO-1A.[34] Witness-1 states she felt "caught in the middle" of this situation because the incident was "a nursing issue" that should not have involved her.[35]

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[29] Although it is unclear from the record whether this event occurred before or after Complainant's email at 7:32am, we conclude that preponderant evidence establishes this event occurred after Complainant's email, based on Complainant's testimony that the incidents underlying Claim 3 occurred "within hours" of having escalated his prior EEO complaint. ROI, Ex. F-1, p. 93.
[30] ROI, Ex. F-5, pp. 235-236, 255.
[31] ROI, EX. F-1, pp. 167-168; Ex. F-3, pp. 204-205.
[32] ROI, Ex. F-3, p. 205.
[33] ROI, Ex. F-6, p. 266. Although the EEO Investigator asked RMO-1A if he reached a conclusion, RMO-1A responded only that he completed the investigation portion. ROI, Ex. F-6, p. 271.
[34] Witness-1 did not elaborate or further explain what was inconsistent between her interview statements and the written statement prepared by RMO-1A. ROI, Ex. F-7, pp. 277-280.
[35] ROI, Ex. F-7, pp. 274-280.

Complainant states that, upon placement on administrative leave, the Agency "made [him] do a perp walk." Complainant further states that security escorted him to his office, where Complainant gathered his belongings, and then escorted him out of the building. Complainant states that this incident is unrelated to his race, color, sex, age, and religion. Complainant states his belief that this incident is reprisal for his December 2022 harassment allegation against DR-1 and his March 2023 sexual harassment allegation against RMO-2.[36]

Claims 4-7: Temporary Detail and Office/Bathroom Access

Complainant states that, following his 10 days of administrative leave, RMO-3 then placed him on a temporary, 120-day detail. RMO-3 issued Complainant a Notice of Detail on March 31, 2023. Complainant states that he currently serves on this detail, which RMO-3 described as "mission essential." Complainant states that, when he arrived at his new office space, he did not have keys to the office or restroom. Complainant states that, upon making RMO-3 aware that he lacked keys, he "was given keys in a couple of days." Complainant states that the detail and lack of restroom or office keys are unrelated to his race, color, sex, age, and religion. Complainant states these incidents are reprisal for his report of sexual harassment against RMO-2.[37]

RMO-3 states that she placed Complainant on a temporary, 120-day detail because he had filed accusations against both DR-1 and RMO-2, who had also both filed accusations against Complainant. RMO-3 states that the environment was "unworkable" and that she, therefore, temporarily detailed Complainant into a critically vacant Policy Officer position for which Complainant was "uniquely qualified." RMO-3 states that this temporary detail was in the "Aztec Building," where Complainant had previously worked for four years. RMO-3 states that Complainant knew the restroom keys were hanging on a hook in Staff Development "for all to use." RMO-3 states that she nevertheless made Complainant his own restroom key after Complainant informed her that he lacked such a key. RMO-3 states that Complainant did not report the "Aztec Building" was undesirable. RMO-3 states that both she and Complainant had worked there together "for years." Furthermore, RMO-3 states that, upon the temporary detail to the Policy Officer position, management afforded him the opportunity to telework 100% of the time.[38]

On June 1, 2023, Complainant sent an email to the Chief Quality Officer, Quality Division, with the subject line titled, "Request to Remain in Policy Officer Position." In this email, Complainant stated that he would consider remaining in the Policy Officer position permanently.[39]

ANALYSIS AND FINDINGS

Disparate Treatment (Race, Color, Sex, Age, Religion, Retaliation)

[36] ROI, Ex. F-1, pp. 68-72.
[37] ROI, Ex. F-1, pp. 69-72, 76, 82-85.
[38] ROI, Ex. F-3, pp. 205-207, 211.
[39] ROI, Ex. F-3, pp. 216-217.

Title VII of the Civil Rights Act of 1964, as amended, Section §§ 701 *et seq*., 42 U.S.C. §§ 2000e *et seq*. ("Title VII") prohibits, in pertinent part, employment discrimination based on race, color, sex, religion, and reprisal for engaging in protected EEO activity.[40] The law prohibiting age discrimination is the Age Discrimination in Employment Act of 1967 (ADEA), 29 U.S.C. Section 633a, as amended. Both statutes prohibit employers from subjecting employees to hostile workplace harassment based, in pertinent part, upon their race, color, sex, age, religion, or engagement in protected EEO activity.

Complainant alleges that the Agency discriminated against and harassed him on the bases of race (Caucasian), color (White), sex (male), age (Y.O.B. 1973), religion (Christian), and reprisal (prior EEO activity). We will address his disparate treatment claims first, before proceeding to his workplace harassment claim.

In the absence of direct evidence of discrimination, a three-step evidentiary analysis examines claims alleging disparate treatment based on race, color, sex, age, religion, and reprisal. Initially, the complainant has the burden of establishing a *prima facie* case of discrimination which, if unrebutted, would support an inference that the Agency's actions resulted from discrimination.[41]

A complainant may establish a *prima facie* case of discrimination by showing: (1) he/she is a member of a protected class; (2) he/she suffered an adverse action; (3) a causal relationship existed between the complainant's membership in a protected class and the adverse action; and, (4) other employees outside of the complainant's protected class were treated differently, or some other evidence exists that the adverse action occurred under circumstances giving rise to an inference of discrimination.

Once the complainant establishes a *prima facie* case, the burden shifts to the agency to "articulate some legitimate, nondiscriminatory reason" for its actions.[42] The only inquiry to determine whether or not the Agency has produced evidence to sufficiently articulate a legitimate, nondiscriminatory reason is whether the Agency's evidence has "framed the factual issue with sufficient clarity so that the [complainant] will have a full and fair opportunity to demonstrate pretext."[43]

If the agency successfully articulates a legitimate nondiscriminatory reason to explain its actions, the burden will shift back the complainant to prove, by a preponderance of the evidence, that the reasons offered by the Agency were not its true reasons, but were mere pretext for discrimination. To satisfy this burden, the complainant needs to demonstrate such "weaknesses, implausibility, inconsistencies, incoherencies, or contradictions in the proffered legitimate reasons that a reasonable fact finder could rationally find them unworthy of credence."[44]

<u>Claim 1</u>

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[40] *McDonnell Douglas Corp. v. Green*, 411 U.S. 792, 802 (1973).
[41] *Id.*
[42] *Texas Department of Community Affairs v. Burdine*, 450 U.S. 248 (1981).
[43] *Id*.
[44] *Jacqueline L. v. Dep't. of Defense*, EEOC Appeal No. 2019001449 (June 23, 2020).

In Claim 1, Complainant4 alleges that the Agency discriminated against him based on race, color, sex, age, religion, and reprisal when, beginning in January 2023, management failed to timely process his FMLA leave paperwork.

We find that Complainant satisfies Prong 1 of the *prima facie* case for discrimination based on race, color, sex, age, religion, and reprisal, by virtue of his unrebutted affidavit testimony identifying his race, color, sex, age, religion, and protected EEO activity.[45]

We will assume *arguendo* that Complainant satisfies Prong 2 of the *prima facie* case because management did not sign approval of Complainant's FMLA leave request until March 7, 2023 – nearly two months after Complainant initially sent an FMLA leave request to RMO-1A. To satisfy prongs 3 and 4 or the *prima facie* case, Complainant must present some probative evidence that the adverse action occurred under circumstances giving rise to an inference of discrimination. Aside from identifying his membership in the protected classes, Complainant does not present any evidence – or even make any particularized factual assertions – establishing a correlation between the timeline of FMLA leave processing, and his membership in the protected classes. For example, Complainant does not identify any similarly situated employees, outside of his protected class, who received more favorable treatment with respect to FMLA leave processing under substantially similar circumstances.

Complainant specifically stated that this incident is unrelated to his religion and, as such, has failed to establish even a subjective correlation between this incident and his religion. Complainant states his belief that this incident is related to his race and color because he is not a Native American; that this incident is related to his sex because most of the staff is female; and that this incident is related to his age because most of the staff is in their 20's or early 30's.

While subjective viewpoints are to be expected, and while Complainant is free to feel that way, proof, and evidence must support these beliefs and viewpoints. In the case of *Complainant v. Department of Veterans Affairs*, the Commission stated that a Complainant's "belief, without more, that the actions of which she complains is 5 is not sufficient to link the Agency's action to prohibited discrimination."[46]

Here, Complainant did not provide any evidence demonstrating the Agency processed his FMLA paperwork in a certain time frame due to his race, color, sex, age, religion, or based on reprisal. For example, the record does not contain any witness testimony corroborating Complainant's allegations. Complainant does not identify any similarly situated co-workers who received more favorable treatment under substantially similar circumstances. Complainant does not allege that management made any comments reflecting discriminatory animus, and we find nothing in the record which supports such a conclusion.

In particular, we note that Complainant contends this incident was related to his report of sexual harassment against RMO-2, which he filed on March 6, 2023. However, Complainant alleges

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[45] Although this incident pre-dates Complainant's March 6, 2023, report of sexual harassment against RMO-2, we note that Complainant previously engaged in protected EEO activity when subordinates named him as the RMO in hostile work environment claims. As such, Complainant meets Prong 1 of the *prima facie* case for discrimination.
[46] EEOC Appeal No. 0120122628 (August 29, 2014).

that the Agency delayed the processing of his paperwork beginning in January 2023 – two months prior to his report of sexual harassment. Complainant states that management officials requested additional information after his original FMLA paperwork submission to RMO-1A on January 13, 2023, which he provided in full on February 7, 2023. Complainant states that the Agency then unlawfully requested additional information; however, the evidence of record establishes that the OPM-71 was blank and that Complainant subsequently neglected to provide additional information. To the extent we consider these delays on the part of the Agency, these alleged delays occurred prior to March 6, 2023, the date Complainant filed his sexual harassment allegation against RMO-2. For these reasons, Complainant cannot meet prongs 3 and 4 of the *prima facie* case for discrimination based on reprisal for having alleged sexual harassment against RMO-2.

To the extent Complainant contends the Agency delayed processing his FMLA paperwork as reprisal for subordinates naming him in hostile work environment allegations at some point in 2022, the record is devoid of evidence to support this contention.

We emphasize that, to prevail on his discrimination claim, Complainant must do more than identify his membership in a protected class, and then express frustration with a management decision. At minimum, Complainant must produce sufficient evidence from which a trier of fact could infer that Complainant's membership in a protected class motivated the challenged management action. For the reasons described above, we find that Complainant fails to satisfy that standard here.

Claim 2

In Claim 2, Complainant alleges that the Agency discriminated against him based on race, color, sex, age, religion, and reprisal when, on or about March 2, 2023, management gave him a low PMAP score.

We find that Complainant satisfies Prong 1 of the *prima facie* case for discrimination based on race, color, sex, age, religion, and reprisal, by virtue of his unrebutted affidavit testimony identifying his race, color, sex, age, religion, and protected EEO activity.[47]

Although Complainant initially received a PMAP score of 3.3, "Achieved Expected Results," which is generally not considered adverse,[48] we will assume *arguendo* that Complainant satisfies Prong 2 of the *prima facie* case because one of his elements did not initially receive a rating and his PMAP was subsequently re-scored as a result. To satisfy prongs 3 and 4 of the *prima facie* case, Complainant must present some probative evidence that the adverse action occurred under circumstances giving rise to an inference of discrimination. Aside from identifying his membership in several protected classes, Complainant does not present any evidence – or even make any particularized factual assertions – establishing a correlation between the incorrectly scored PMAP and his membership in these protected classes. Complainant states that he does

[47] Although this incident pre-dates Complainant's March 6, 2023, report of sexual harassment against RMO-2, we note that Complainant previously engaged in protected EEO activity when subordinates named him as the RMO in hostile work environment claims. As such, Complainant meets Prong 1 of the *prima facie* case for discrimination.
[48] *See, e.g., Shanta S. v. Department of Veterans Affairs*, EEOC Appeal No. 2021004286 (October 11, 2022).

not believe his PMAP score had any nexus to his race, color, sex, age, or religion, and was solely based on having rebuffed RMO-2's sexual advances in November 2022.

Notwithstanding the weaknesses in Complainant's *prima facie* case, the U.S. Supreme Court has found that when the Agency has articulated a legitimate, nondiscriminatory reason for the action at issue, the factual inquiry can proceed to the ultimate issue of whether the complainant has shown, by a preponderance of the evidence, that discrimination motivated the Agency's actions.[49] We will therefore assume *arguendo* that Complainant established a *prima facie* case of discrimination, and proceed to management's explanation for the challenged actions.

RMO-1A states that he issued Complainant the PMAP rating. RMO-1A states that, for the performance period at issue, Complainant was new to leadership. RMO-1A states that Complainant excelled in some PMAP elements and required improvement in other elements, which was not unusual for somebody in a new position. RMO-1A states that Complainant exhibited some difficulty turning work in on time. RMO-1A states that the original PMAP rating of 3.3 contained an error, which management corrected pursuant to Complainant's grievance.

We find this explanation sufficient to satisfy the Agency's burden of articulating a legitimate, nondiscriminatory reason for its actions. Therefore, the burden shifts back to Complainant to demonstrate that this explanation is mere pretext. To demonstrate pretext – and prevail on his discrimination claim – Complainant must show that the Agency's explanation is not worthy of belief, and that a discriminatory motive was more likely than the given explanation.[50]

It is therefore Complainant's burden to establish the existence of an unlawful motivation on the part of the Agency by a preponderance of the evidence, and more is required to meet that burden than merely expressing his belief. Such evidence can take the form of discriminatory statements, comparative or statistical data showing significant discrepancies, unequal application of Agency policy, and deviations from standard procedures without explanation or justification.

Here, Complainant states generally that he "expected to get a 4.0 or better" to support his claim of discrimination. However, mere disagreement with one's performance appraisal is insufficient to demonstrate the requisite connection to a protected basis.[51] While subjective viewpoints are to be expected, and while Complainant is free to feel that way, proof, and evidence must support these beliefs and viewpoints. In the case of *Complainant v. Department of Veterans Affairs*, the Commission stated that a Complainant's "belief, without more, that the actions of which she complains is discriminatory is not sufficient to link the Agency's action to prohibited discrimination."[52]

Here, Complainant did not provide any evidence demonstrating the Agency's obligation to give him a higher PMAP score, or that the Agency scored him at a 3.3 initially, then subsequently corrected an error and scored him at a 3.5, due to his race, color, sex, age, religion, or protected EEO activity. For example, the record does not contain any witness testimony corroborating

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[49] *See U.S. Postal Service Board of Governors v. Aikens,* 460 U.S. 711, 713-714 (1983).
[50] *Texas Dep't of Community Affairs v. Burdine*, 450 U.S. 248 (1981).
[51] *See, e.g., Chu R. v. Dep't of the Navy*, EEOC Appeal No. 2022004311 (November 9, 2023).
[52] EEOC Appeal No. 0120122628 (August 29, 2014).

Complainant's allegations. Complainant does not identify any similarly situated co-workers who received more favorable treatment under substantially similar circumstances. Complainant does not allege that management made any comments reflecting discriminatory animus, and we find nothing in the record which supports such a conclusion.

To the extent Complainant contends he received the PMAP score as reprisal for having reported RMO-2 for sexual harassment on March 6, 2023, we note that RMO-1A sent Complainant his original PMAP score on February 23, 2023, and that Complainant filed his Step 1 grievance on 3, 2023 – all of which pre-date his sexual harassment allegation against RMO-2. To the extent Complainant contends he received the PMAP score as reprisal for subordinates naming him in hostile work environment allegations at some point in 2022, the record is devoid of evidence to support this contention. Neither does Complainant provide subjective testimony that he believes this to be the case.

We emphasize that to prevail on his discrimination claim, Complainant must do more than identify his membership in a protected class, and then express frustration with a management decision. At minimum, Complainant must produce sufficient evidence from which a trier of fact could infer that Complainant's membership in a protected class motivated the challenged management action. For the reasons described above, we find that Complainant fails to satisfy that standard here.

Harassment (Sexual)

In order to establish a case of hostile environment sexual harassment, Complainant must show, by preponderance of the evidence, that: (1) he belongs to a protected class; (2) that he was subjected to unwelcome sexual advances, requests for sexual favors, or other verbal or physical conduct of a sexual nature; (3) the harassment complained of was based on sex; (4) the harassment affected a term or condition of employment, either unreasonably interfering with the work environment or creating an intimidating, hostile, or offensive work environment; and, (5) there is a basis for imputing liability to the employer. [53]

According to the record, Complainant fails to establish a prima facie case of sexual harassment. Complainant establishes that he belongs to a protected class (male). However, the record does not clearly show that the Agency subjected Complainant to unwelcome sexual advances, requests for sexual favors, or other verbal or physical conduct of a sexual nature. Complainant testifies that, in November 2022, RMO-2 gave him a hug, which he "rebuffed." RMO-2 admits that she gave Complainant a hug, but contends that she asked Complainant if she could give him a hug due to him having a bad day; that Complainant agreed; that the hug was non-sexual in nature; and that, subsequently, she and Complainant openly discussed and joked about the hug.

[53] *Margaret M. v. Secretary of Veterans Affairs*, EEOC Appeal No. 0120151790 (January 23, 2018).

"Simple teasing, offhand comments, or isolated incidents that are not 'extremely serious'" will not rise to the level of unlawful harassment.[54] Here, the record does not suggest that RMO-2 made any direct reference to sexual content or comments, propositioned Complainant, made any reference to sexual quid pro quo, or otherwise intended a sexual gesture by her actions. Complainant did not object to her hug until four months later, when he filed an addendum to his Step 1 grievance contending that RMO-2 refused to raise or correct his PMAP score based on Complainant's rejection of her hug in November 2022. We specifically note that, in December 2022 – approximately one month after the hug incident – Complainant informed management that DR-1 was subjecting him to a hostile work environment. As such, Complainant was aware in December 2022 how to inform management of alleged harassment yet did not inform management of the hug incident at that time. Although Complainant informed management in March 2023 that he interpreted the hug through a sexual lens, there is no evidence in the record that RMO-2 intended it that way and a reasonable employee could have interpreted her actions in a non-sexual manner. Finally, we note that RMO-2 did not issue Complainant his PMAP score; rather, RMO-1A scored Complainant for the appraisal at issue. The record lacks evidence to suggest that Complainant's sex (male) had any nexus to RMO-1A's PMAP score, even in light of the scoring error. Based on the above, Complainant fails to establish a prima facie case of sexual harassment.

Claims 3 and 4

In Claims 3 and 4, Complainant alleges that RMO-3 placed Complainant on administrative leave, escorted him out of the facility, removed his system access, and sent Complainant on a temporary detail, in retaliation for Complainant's report of sexual harassment against RMO-2. Complainant states that he does not believe his race, color, sex, age, or religion had any nexus to these incidents. As such, our analysis will focus only on Complainant's stated basis of reprisal.[55]

We find that Complainant satisfies Prong 1 of the *prima facie* case for retaliation based on having engaged in protected EEO activity approximately less than a month prior to being placed on administrative leave, escorted from the facility, removed from system access, and placed on a temporary detail. We find that Complainant satisfies Prong 2 of the *prima facie* case, because management prohibited him from working pending the outcome of the internal investigation and placed him on a temporary detail in another location. We find that Complainant satisfies prongs 3 and 4 of the *prima facie* case due to the close temporal proximity between his protected EEO activity and the decisions to place him on administrative leave and temporary detail.

Having found that Complainant established a *prima facie* case of retaliation, the burden now shifts to the Agency to articulate a legitimate, nondiscriminatory explanation for its actions. RMO-3 states that, on March 21, 2023, RMO-1B reported that Complainant and DR-1 had engaged in a disagreement about a work matter and that, during this altercation, Complainant – who supervised DR-1 – told RMO-1B to get DR-1 out of his clinic or he would "beat her ass," or words to that effect. RMO-3 states that she had personally witnesses Complainant "lose his

[54] EEOC Enforcement Guidance on *Vicarious Employer Liability for Unlawful Harassment by Supervisors*. *See, e.g., Puklich v. U.S. Postal Service,* EEOC No. 0120093230 (EEOC OFO 2011) (isolated event involving squeezing of hand not sufficiently severe); *Bui, Jr. v. Department of the Navy*, EEOC No. 01A15323 (EEOC OFO 2002).
[55] ROI, Ex. F-1, pp. 69-70.

temper in stressful situations" and that DR-1 and Complainant had a "history of conflict." RMO-3 states that, after the 10-day administrative leave period was over, she temporarily detailed Complainant to another work group based on an "unworkable" work environment that included multiple complaints between Complainant and both DR-1 and RMO-2.

We find this explanation sufficient to satisfy the Agency's burden of articulating a legitimate, nondiscriminatory reason for its actions. While we note that, although Witness-1 testified she did not hear the comment at issue, there is no evidence in the record that RMO-1B and/or RMO-3 fabricated the incident between Complainant and DR-1 on March 21, 2023, as pretext for discrimination or retaliation. Rather, the evidence of record reflects that an altercation occurred, with unknown words exchanged between Complainant and DR-1. Witness-1 initially reported to RMO-1A that Complainant made some sort of comment to DR-1, although she later stated she could not recall what occurred and that she did not want to be involved.

It is outside the purview of this adjudication to determine what specifically occurred on March 21, 2023. Rather, limiting our determination to whether the Agency has articulated a legitimate, nondiscriminatory reason for the incidents underlying Claims 3 and 4, based on preponderant evidence in the record. All witnesses, including Witness-1, corroborate that there was an altercation between Complainant and DR-1 that merited further investigation. All witnesses corroborate that Complainant and DR-1 had filed various complaints against each other and the record establishes that, on March 21, 2023, Complainant asked management to address the alleged harassment from DR-1. As such, we conclude, based on a totality of the record and a preponderance of evidence, that the Agency has articulated legitimate, nondiscriminatory reasons for the incidents underlying Claims 3 and 4. Therefore, the burden shifts back to Complainant to demonstrate that these explanations are mere pretext.[56]

To meet his ultimate burden of persuasion, Complainant must not only establish a prima facie case but also show by preponderant evidence that the Agency's explanation for its actions is unworthy of credence and/or produce credible, persuasive, and reliable evidence of retaliatory motive. The law requires more than temporal proximity of the adverse action to the protected EEO activity to show pretext.[57]

Complainant contends that Claims 3 and 4 resulted from RMO-1B's falsification of events to RMO-3 and RMO-1A's falsification of Witness-1's interview statements. However, the record contains credible evidence that there was an altercation between Complainant and DR-1 on March 21, 2023; that Complainant and DR-1 had a history of disagreement, conflict, and EEO complaints; and that Witness-1 initially reported to RMO-1A that Complainant had indeed made some sort of statement regarding DR-1 on March 21, 2023. As such, we do not find that RMO-1B reported Complainant to RMO-3 due to Complainant's engagement in prior protected EEO activity.

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[56] *Texas Department of Community Affairs v. Burdine*, 450 U.S. 248 (1981).
[57] *See Xochiti B. v. Dep't of Homeland Sec.*, EEOC Appeal No. 0120143090 (February 19, 2016) (requiring more than temporal proximity to show pretext); *see also Vaughn v. Dep't of Agric.*, EEOC Appeal No. 0120130948 (August 30, 2013) (finding that temporal proximity, standing alone, does not meet the complainant's burden of proving by a preponderance of the evidence that management retaliated against her).

Furthermore, substantial evidence of record establishes that RMO-3 placed Complainant on administrative leave; escorted Complainant from the building; and subsequently placed Complainant on temporary detail based on the altercation between Complainant and DR-1, not based on Complainant's prior protected EEO activities. Whether Complainant did or did not make the specific comment at issue is irrelevant to the ultimate determination of whether Complainant has established pretext for discrimination based on reprisal. The Agency had a duty to investigate the March 21, 2023, incident, to determine what occurred and to take appropriate action as supported by the administrative investigation. Furthermore, we note that – in his 7:32am email on March 21, 2023 – Complainant asked the Agency to stop the purported harassment from his subordinate, DR-1. Immediately and subsequently, management placed Complainant on administrative leave and then temporarily detailed Complainant, which removed Complainant from direct contact with DR-1. For these reasons, we find that the Agency reasonably placed Complainant on administrative leave and placed him on a temporary detail pending the outcome of an administrative investigation into the incident that occurred on March 21, 2023, and pending resolution of various harassment allegations filed between Complainant and DR-1 and Complainant and RMO-2.[58]

Accordingly, we find that Complainant has not demonstrated, by a preponderance of the evidence, that RMO-3 retaliated against him in Claims 3 or 4.

Claims 5-7

Harassment (Non-Sexual)

As noted, Complainant also alleges that management harassed him on the bases of race (Caucasian), color (White), sex (male), age (Y.O.B. 1973), religion (Christian), and reprisal (prior EEO activity), as evidenced by Claims 1-7. As an initial matter, we may not consider Claims 1-4, analyzed above, as part of Complainant's harassment claim, given our determination that these incidents were not motivated by discriminatory or retaliatory animus.[59] Thus, we limit Complainant's harassment complaint to Incidents 5-7.

In order to establish a *prima facie* case of harassment, the complainant must show that: (1) he or she belongs to a statutorily protected class;[60] (2) he or she was subjected to unwelcome conduct; (3) the conduct complained of was based on his/her protected status; (4) the conduct had the purpose or effect of unreasonably interfering with his/her work performance and/or creating an intimidating, hostile, or offensive work environment; and (5) there is a basis for imputing liability to the employer.[61] To be found illegal, the harassment must be severe or pervasive to be

[58] *See, e.g., Brittney B. v. State of Alaska*, EEOC Appeal No. 1120130001 (May 12, 2022) (no pretext of retaliation when placing complainant on administrative leave pending an investigation and subsequent termination, despite temporal proximity to complainant's protected activity because the record supported the agency's explanation for the adverse actions and temporal proximity alone was insufficient to establish pretext).
[59] *Oakley v. U.S. Postal Serv*., EEOC Appeal No. 01982923 (Sept. 21, 2000); *Epting v. Dep't of Veterans Affairs*, EEOC Appeal No. 0120112534 (Sept. 13, 2013).
[60] It is well settled that harassment based on an individual's protected EEO activity is actionable. *Meritor Savings Bank v. Vinson,* 477 U.S. 57, 67 (1986).
[61] *Murray v. Dep't of Agric*., EEOC Appeal No. 01986319 (May 22, 2000).

considered discriminatory.[62] Actual psychological or emotional injury is not required.[63] However, the conduct must be severe or persistent; a single incident or a group of isolated incidents is not enough to establish discriminatory harassment.[64] Harassment, as the term is used in employment discrimination cases, refers to more than being subjected to stress.[65]

For the same reasons identified in our analysis of Complainant's disparate treatment claims, we find that Complainant satisfies Prong 1 of the *prima facie* case for hostile workplace harassment – membership in a protected class. We likewise find that Complainant satisfies Prong 2 of the *prima facie* case—that the Agency subjected him to behavior which he found unwelcome.[66]

To satisfy Prong 3 of the *prima facie* case, Complainant must prove, by a preponderance of the evidence, that his membership in a protected class motivated the challenged management actions. We emphasize that it is necessary in hostile work environment cases to exclude from consideration personnel decisions that lack a linkage or correlation to the claimed ground of discrimination. Only those incidents linked to a discriminatory motive are considered evidence of harassment.[67]

At the outset, we note that Event 7 is essentially the same as Claim 4. However, we will nevertheless consider whether the detail to the "Aztec Building" was in an "undesirable location" due to discriminatory and/or retaliatory harassment. We further note that, in testimony, Complainant states he does not believe Events 5 through 7 were related to his race, color, sex, age, and/or religion; rather, he believes these events were related only to his prior protected EEO activity.

Complainant states that, upon relocation to the "Aztec Building," he initially did not have keys to the office or the men's restroom. Complainant states that he informed RMO-3 of this issue and that he then received appropriate keys "in a couple of days." RMO-3 states that Complainant had worked in the "Aztec Building" for several years and knew where the key to the men's restroom was located. Nevertheless, RMO-3 directed a new restroom key for Complainant, which Complainant received on April 6, 2023. With respect to Event 7, we note that Complainant had worked in the "Aztec Building" for several years. Furthermore, in June 2023 – during his temporary detail – he expressed a desire to remain in this new Policy Officer position at the "Aztec Building" permanently.

To demonstrate retaliatory harassment, Complainant states that he filed a sexual harassment complaint against RMO-2 and expresses his belief he did not receive an office and restroom key timely, and that his detail was undesirable. Even accepting Complainant's depiction of events as

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[62] *Harris v. Forklift Systems, Inc*., 510 U.S. 17, 21 (1993).
[63] *Id*.
[64] *Scott v. Sears Roebuck and Company*, 798 F.2d210 (7th Cir. 1986).
[65] *Lin v. U.S. Postal Serv*., EEOC Appeal No. 01932880 (December 23, 1993).
[66] Enforcement Guidance on *Harris v. Forklift Systems, Inc*., EEOC Notice No. 915.003 (March 8, 1994).
[67] *See Doe v. U.S. Postal Service*, EEOC Appeal No. 0120130491 (December 18, 2014) (A finding of hostile work environment is precluded where the complainant fails to establish that discriminatory or retaliatory animus motivated any of the actions taken by the Agency); *Oncale v. Sundowner Offshore Services, Inc*., 523 U.S. 75, 81 (1998) ("Title VII does not prohibit all verbal or physical harassment in the workplace," only that which is motivated by discriminatory animus.)

true, we emphasize that Title VII is not intended as a vehicle for review of a supervisor's management or communication style.[68] The question is not whether Complainant received a restroom or office key as quickly or efficiently as he would have liked, or whether he did or did not like working in the "Aztec Building;" rather, the only issue before us is whether management denied Complainant's access to the restroom, failed to provide him with office keys, and reassigned him to an undesirable location based on his membership in a protected class. Complainant's frustration with ordinary work-related interactions does not amount to unlawful retaliatory harassment.

Additionally, we find that the acts of alleged harassment, whether considered separately or in combination, are insufficient to satisfy Prong 4 of the *prima facie* case. The Supreme Court has made it clear that harassment standards are demanding—to be actionable, conduct must be extreme and not merely rude or unpleasant.[69] Consequently, "ordinary tribulations of the workplace," such as the normal day-to-day exercise of "supervisory responsibilities," are generally not considered evidence of harassment.[70]

Upon review, we find that Complainant failed to demonstrate that management subjected him to anything other than ordinary supervision. We reiterate that ordinary management actions are not sufficient to create a hostile work environment.[71] Based on the foregoing, we find that Complainant has not satisfied prongs 3 and 4 of the *prima facie* case for hostile workplace harassment.

CONCLUSION

It is the decision of the U.S. Department of Health and Human Services that the Agency did not discriminate against the Complainant in this matter.

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[68] *Ackerman v. Diamond Shamrock Corp*., 670 F.2d 66, 69, (6th Cir. 1982).
[69] *See Harris v. Forklift Systems, Inc*., 510 U.S. 17, 21 (1993).
[70] *See Baba v. Dep't of Veterans Affairs*, EEOC Appeal No. 01985316 (March 30, 2001); *Blake v. U.S. Postal Service*, EEOC Appeal No. 0120070057 (March 18, 2009); *Longoria v. Dept. of Veterans Affairs*, EEOC Appeal No. 01A52731 (June 23, 2005) ("the incidents described are consistent with a supervisor providing an employee with feedback regarding the performance of duties, and thus they cannot be found to create a hostile work environment.").
[71] *Erika H. v. Dep't of Transp*., EEOC Appeal No. 0120151781 (June 16, 2017) (explaining that ordinary management actions, such as assuring compliance with agency policy and procedures, monitoring subordinates, scheduling the workload, scrutinizing, and evaluating performance, providing job-related advice and counsel, taking corrective action in the face of performance shortcomings, and otherwise managing the workplace, are in general not sufficient to create a hostile work environment).

RMO and WITNESS KEY

RMO-1A	Jason White Acting Assistant Chief Nursing Officer Phoenix Indian Medical Center (PIMC) Indian Health Service (IHS)
RMO-1B	Brandi Benjamin Assistant Chief Nurse Officer Ambulatory Care PIMC IHS
RMO-2	Candace Lee Chief Nurse Officer PIMC IHS
RMO-3	Debra Ward Lund Acting Chief Executive Officer (CEO) PIMC IHS
Witness-1	Ashley Krumenacker Pharmacist PIMC IHS

ATTACHMENT A
NOTICE OF APPEAL RIGHTS (EEOC)

A complainant, dissatisfied with this Final Agency Decision, may file an appeal with the Equal Employment Opportunity Commission (EEOC). A complainant may file an appeal by completing the enclosed EEOC Notice of Appeal/Petition (EEOC Form 573) and including a copy of this Final Agency Decision. The EEOC must receive an appeal with a postmark or, absent a postmark, within 30 calendar days from the day the complainant receives the Final Agency Decision. If an attorney represents a complainant, the 30-day period for filing a notice of appeal begins to run on the day after the attorney receives the Final Agency Decision. The filing date of the appeal shall be the postmark date, or in the absence of a postmark, on the date the EEOC receives the appeal. If a complainant does not file an appeal within the time limits indicated above, the EEOC may deem the appeal untimely and may dismiss the appeal. Additionally, as required by 29 C.F.R. § 1614.403(a), an appeal should include a separate statement indicating what the complainant is appealing. Within 30 calendar days from the date of the appeal a complainant must file any statements or briefs filed in support of an appeal with the EEOC. Electronic mail submission through the EEOC's Public Portal at **https://publicportal.eeoc.gov/Portal/Login.aspx** is the EEOC's preferred method for submission.

A complainant must also send a copy of any appeal, with supporting documents, to the Department of Health and Human Services' (HHS) Equal Employment Opportunity, Diversity & Inclusion. The preferred method is electronic mail (email) submissions:

Attn: Karen T. Comfort
Deputy Asst. Secy. for Equity, Diversity & Inclusion & Chief Diversity Officer
Office of Equal Employment Opportunity, Diversity & Inclusion
U.S. Department of Health and Human Services
Email: HHS.EEO@hhs.gov

A complainant must certify the date and method by which he or she provided service on HHS regarding any appeal filed with the EEOC. Failure to provide a copy of the appeal and supporting statement to HHS may result in dismissal of the appeal.

Within 30 calendar days of receipt of the notice of appeal, HHS must submit the complaint file to the OFO/EEOC. HHS has 30 calendar days from receipt of the statement or brief in support of the appeal, or 60 calendar days if Complainant does not file a statement or brief, to submit a brief in opposition to the appeal to the OFO/EEOC, and simultaneously serve a copy of the opposition brief upon a complainant.

In addition, with respect to claims filed under Title VII of the Civil Rights Act of 1964, as amended, the Age Discrimination in Employment Act of 1967, as amended, and/or the Rehabilitation Act of 1973, as amended, a Complainant may file a civil action in the appropriate federal district court in any of the following situations:

A. Within 90 calendar days of receipt of HHS's Final Agency Decision on an individual or

class complaint if Complainant does not file an appeal with the EEOC;

B. Within 90 calendar days of receipt of the EEOC's decision on an appeal;

C. After 180 calendar days from the date of filing an individual or class complaint if Complainant does not file an appeal with the EEOC and HHS has not issued a Final Agency Decision;

D. After 180 calendar days from the date of filing an appeal with the EEOC if the EEOC has not issued a decision.

For claims filed under the Equal Pay Act, a complainant may file a civil action within two (2) years or, if the violation is willful, within three years of the date of an alleged violation, regardless of whether a complainant pursued any administrative complaint processing.

If a complainant files a civil action under Title VII of the Civil Rights Act of 1964, as amended, or the Rehabilitation Act of 1973, as amended, and if a complainant does not have or is unable to obtain the services of a lawyer, a complainant may request that the Court appoint a lawyer to represent a complainant. In such circumstances as it may deem just, the Court may appoint a lawyer and may authorize commencement of the action without payment of fees or costs or posting of security. A complainant must make any such request within the above-referenced 90-day time limit for filing suit and in such form and manner as the Court may require. The granting or denial of the request is within the sole discretion of the Court. Filing a request for an attorney does not extend your time in which to file a civil action. Both the request for a Court-appointed representative and must file the civil action within 90 calendar days of the date a complainant receives the final decision from HHS or from EEOC. A complainant should be aware that attorney's fees are not allowable at the administrative level under the Age Discrimination in Employment Act (29 U.S.C. § 633(a)) or the Equal Pay Act (29 U.S.C. S 206(d)).

If a complainant files a civil action, the complainant must name the appropriate agency head as the defendant. Failure to name the agency head may result in loss of entitlement of any judicial redress for the complainant. Xavier Becerra, Secretary is the head of the U.S. Department of Health and Human Services.

FOR THE DEPARTMENT:

BEVERLY M. ONWUBERE -S Digitally signed by BEVERLY M. ONWUBERE -S Date: 2024.07.11 19:58:52 -04'00' for

Karen T. Comfort
Deputy Assistant Secy. for Equity, Diversity & Inclusion & Chief Diversity Officer
Office of Equal Employment Opportunity, Diversity, and Inclusion

Enclosure: EEOC Form 573

CERTIFICATE OF SERVICE

For timeliness purposes, the Department shall presume that the below-named individuals received the foregoing Final Agency Decision within one (1) calendar day after the date sent by electronic mail (email) delivery. I certify that on July 11, 2024, the Department sent the foregoing Final Agency Decision by email to the following:

COMPLAINANT: Kevin Turnage
kddturnage@gmail.com

HHS: Angela Porter, Director
Office of Diversity Management and Equal Opportunity
Angela.Porter@ihs.gov

Beverly Onwubere

Beverly Onwubere, Director
Complaints Adjudication Division